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### **Lifting the Veils of Secrecy: UnPoison's 2025 Update to South Africa's Highly Hazardous Pesticide Database**

UnPoison has just published the 2025 update to their [Database of Highly Hazardous Pesticides \(HHPs\)](#) registered for use in South Africa. Unlike other countries, South Africa does not publicly disclose a complete list of registered pesticides, including those that are severely harmful to health and have been banned in the EU and other jurisdictions.

CropLife, the trade organisation representing the pesticide industry, houses this information privately on a members-only platform via their subsidiary, Agri-Intel. There is currently no way for a member of the public to find out which pesticides are used in South Africa, how they are classed, their toxicity and impacts, or any registration details. UnPoison has been campaigning since 2019 for the national database to be housed independently by DALRRD, and freely accessible to the public.

Access to UnPoison's HHP database ensures that the South African agricultural sector, policymakers, researchers, and the public are empowered with accurate data and (globally harmonised) classifications to inform our policies with best practices. This is essential to protect human health, water, soil, the environment, biodiversity and specifically the well being of rural farmers, farmworkers, and farm dwellers, from the most hazardous and harmful pesticides on earth. Pesticides deemed too toxic to be in use.

The criteria of the database includes pesticides that are both acutely toxic; they may cause death or irreversible harm to health from a single exposure; and those that are chronically toxic, meaning that they cause injury and disease over time with multiple exposures. It is the chronic exposures that are linked with cancers, multi-generational disorders, neurological disease, reproductive disorders, auto-immune disease, severe renal, respiratory and dermal conditions, that may and do lead to illness and death over time. Chronic poisoning is hard to prove as a causal link to disease however, and this has enabled the status quo to continue.

### **Methodology**

UnPoison's 2025 update integrates the eight criteria of the [FAO/ WHO Joint Meeting on Pesticide Management](#) classification system, the [Global Harmonized System \(GHS\) of classification](#) and labelling of

chemicals developed by the United Nations (and used by the Department of Labour to classify Hazardous Chemical Agents), and an additional classification, the [European Chemicals Agency \(ECHA\) classification](#) (used by Department of Agriculture, Land Reform & Rural Development).

One of the complexities of pesticide classification is that there are many different systems across regions. UnPoison uniquely combines these systems used by DALRRD into one database and identifies pesticides following global best practice, to ensure harmonisation for governance, trade, and export.

#### **Analysis of South Africa's 2025 HHP Database includes key findings such as:**

- 195 HHPs are legally in use in South Africa (including Terbufos), largely unregulated, enabling industry impunity across the value chain for the [well documented harms](#) they continue to cause.
- Only 29 (approx 13%) of South Africa's 224 Highly Hazardous Pesticides have been fully banned to date.
- 116 (almost 60%) of SA's legally in-use Highly Hazardous Pesticides are "not authorised for use" in the EU.
- There are twenty-two pesticides in criteria 1 (WHO 1a and 1b - the most acutely toxic class of pesticide in the world) still legally in use.
- In April 2022 the Registrar of Act 36 issued a [phase-out notice](#) for pesticides with active ingredients that meet the criteria of carcinogenicity, mutagenicity and reproductive tox (CMR) of the GHS. These fall into criteria 2, 3 and 4 of the JMPM system on UnPoison's database. There are 60 pesticides that meet those criteria still legally in use, including the [28 pesticides](#) of the Registrars phase out list. This means that an additional 32 dangerously harmful pesticides should be included on that list for phase out, but as yet have not been.
- As of November 2024, chlorpyrifos and cartap hydrochloride have been added to the ban list in South Africa
- Terbufos, the pesticide responsible for the most deaths by poisoning in South Africa since 2009, including the accidental deaths of 23 children last year, belongs to three of the eight FAO/WHO JMPM HHP criteria:
  - Criteria 1 - WHO 1a and 1b - acutely toxic,
  - Criteria 6 - Rotterdam Convention Prior informed consent (PIC) pesticide
  - Criteria 8 - High incidences of severe or irreversible adverse effects on human health and the environment

#### **International Treaties and Conventions**

South Africa is a signatory to multiple international treaties regulating hazardous substances that underpin criteria 5, 6, and 7 of the HHP classifications:

- The Stockholm Convention aims to eliminate persistent organic pollutants (POPs) known for long-lasting environmental and health risks. South Africa has taken steps to phase out ten of the total sixteen that have been registered, with **six Stockholm HHPs still legally in use.**

- The Rotterdam Convention facilitates shared responsibility in the trade of hazardous chemicals. While South Africa participates in prior informed consent (PIC) procedures, enforcement still remains weak. **Twenty-two pesticides listed in the Rotterdam Conventions Annex III of chemicals subject to Prior Informed Consent remain legally in use in South Africa.**
- The Montreal Protocol focuses on phasing out substances that deplete the ozone layer. While not directly pesticide-focused, it has influenced regulations on fumigants like methyl bromide which is still in legal use.

## Global Pesticide Use

The pesticide trade is a multi-billion-dollar industry, with the global market valued at over \$85 billion annually and expected to grow to \$105 billion by 2026. South Africa is a key player in both pesticide imports and exports to other African countries. However, the human cost of pesticide use is staggering, with an estimated 385 million cases of unintentional acute pesticide poisoning each year, including approximately 11,000 fatalities. Chronic disease has become a worldwide epidemic as a result of exposure to environmental toxins and pollutants with 25% of chronic diseases being linked to chemical substances (including pesticides) worldwide. These numbers underscore the urgent need for tighter regulation and safer alternatives.

## South African Campaigns against Highly Hazardous Pesticides

UnPoison has been calling for the phase out of the most acutely toxic class of pesticide, WHO 1a and 1b in various legal comments to DALRRD since 2019. In allegiance with [PAN and other global movements](#) around the world, including the [Global Framework on Chemicals](#) (previously SAICM), the UnPoison Network comprised of over seventy aligned academic institutions, organisations and high level experts initiated a campaign against HHPs in 2022 with a [letter of demand to the Registrar of Act 36](#). This was followed by publishing the first ever publicly available database of [Highly Hazardous Pesticides in 2023](#).

A newly formed civil society-led initiative, the **South African People's Tribunal on Agrottoxins (SAPToA)** has taken up the fight against HHPs. SAPToA, will hold a tribunal as a platform for farmworkers, rural communities, scientists, and environmental activists to present evidence on the harmful impacts of agrochemical use in South Africa later this year, and has called for an immediate ban on Terbufos and all HHPs. This is especially in the wake of the recent terbufos poisonings that could have been prevented had government taken heed of the calls for a ban over the last two decades. These calls are being supported by the [South African Human Rights Commission \(SAHRC\)](#) who is currently lobbying parliament to implement these bans.

UnPoison's 2025 database empowers initiatives such as these with critical information about the highly hazardous pesticides that South Africans are exposed to, to help drive these campaigns.

## EU Double Standards

UnPoison's 2025 update has identified that 116 pesticides still legally used in South Africa are not authorised for use (banned) in the EU.

[Women on Farms](#) have been [campaigning since 2019](#) for an end to these double standards that allow Highly Hazardous Pesticides banned in the EU to be exported to South Africa, where they harm farmworkers, especially women, who face daily exposure. These pesticides, which are linked to serious health risks including cancers, reproductive disorders, and birth defects, are disproportionately affecting women working in agriculture, who often have limited access to protective equipment and healthcare.

Many of these pesticides are still manufactured and exported by European agrochemical companies, despite not being authorised for use within their own borders.

Only 29 pesticides are completely banned in South Africa. "This stark imbalance highlights the ethical inconsistencies and double standards in the global pesticide trade," says Rico Euripidou, Chemicals and Campaigns Support of [groundWork](#), one of South Africa's key environmental justice organisations campaigning to end double standards and phase out HHPs.

### **South Africa's Position**

South Africa has pledged to eliminate HHPs by 2035, a timeline UnPoison would like to see brought forward to at least 2030 given the unreasonable public health risks and harms they pose to farm workers, farm dwellers, farm town residents, marginalised communities, and the public - consumers of fresh produce. UnPoison is committed to ensuring that government, industry, and civil society sing off the same hymn sheet with consensus on the Highly Hazardous Pesticides destined for phaseout.

This is why opening up the currently fraught regulatory pathway for biological alternatives is critical for the phase-out of HHPs. Thousands of products waiting to be registered are backlogged, or have been rejected due to an incompatible process designed for toxic synthetic compounds. A new, optimised, and efficient process for biologicals should be the core focus of DALRRD under the newly appointed Minister Steenhuisen to ensure sector resilience and growth.

*UnPoison has reached out to Minister Steenhuisen on multiple occasions to request a meeting regarding the regulatory framework, the phase out of HHPs, and the phase in of alternatives, but has received no response.*

### **Updates to outdated regulations**

The regulatory framework that governs pesticide use is woefully antiquated, and fragmented across seven government departments. The departments lack the capacity and resources for management and monitoring, and enforcement is weak. That said, there has been a tremendous effort in recent years by the Registrar of Act 36 to address these issues via increased engagement with civil society and an incremental process to bring the regulations up to date.

Some positive additions have been the inclusion of “Substances of Concern” and “Low Risk” products as classifications in the 2023 update, as well as a commitment to house the national pesticide registry independently in DALRRD with quarterly updates (something that has not materialised yet), and an expedited registration process for low risk products in the draft 2024 update.

A subsequent update to Act 36 of 1947 is currently in progress after draft regulations were issued for comment again in 2024. UnPoison is optimistic that this will bring added improvements to the registration process and enhanced protections for the public.

### **Derogations**

A step backward however is the newly introduced Derogation Process which enables pesticide manufacturers to apply for ban exemptions for hazardous pesticides being phased out. This new process is highly exploitable and provides a loophole for the agro-chemical industry to avoid any national bans, and continue producing, distributing and using HHPs with impunity in the face of harms they cause. After all, poison is poisonous, regulated or not. This new process must be scrapped or completely updated to ensure adequate protection of public health and the environment.

### **Notes on evolving data**

The national registry of pesticides is not static, and as a result, neither is the list of HHPs. Over time, pesticides are registered, renewed, withdrawn, not renewed, restricted, or banned. As research and data become available, some pesticides can even be reclassified, often as additional risks become known. Reclassifying pesticides can however be dangerous territory if used as a trick by industry to reclassify as less harmful, to avoid certain products being phased out.

One of the problems faced by the South African regulatory landscape governing pesticides is that pesticide classifications across regions have not been harmonised. A highly hazardous pesticide in the Global North can have a different classification in the Global South due to industry lobbying in different countries, and/ or deficient skills and resources in regulatory departments.

### **The EU Green Deal**

The EU Green Deal, which includes the Farm to Fork Strategy and the Chemical Strategy for Sustainability, aims to reduce pesticide use in Europe by 50% by 2030. However, the continued export of hazardous pesticides to developing countries contradicts these goals. South Africa, as a major agricultural commodity exporter to the EU, may face export restrictions if it does not align with stricter EU standards restricting pesticides use. This could significantly impact South African farmers reliant on these chemicals while pushing for a shift toward safer, sustainable alternatives.

### **An opportunity for Alternatives**

With the increasing global shift towards sustainable agriculture, South Africa has a significant opportunity to develop and manufacture biological alternatives to HHPs, such as biopesticides. By

creating a regulatory pathway for safer, locally produced biopesticides, the country could not only reduce reliance on hazardous chemicals but also expand its agricultural export market. Investing in biological solutions can promote economic growth while ensuring better protection for public health and the environment. It will also support a shift away from the destructive extractive practices of industrial agriculture towards a Just Transition in the sector where agro-ecology, circular economies, biodiversity and indigenous knowledge systems can thrive.

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[UnPoison](#) is an advocacy NPO that specialises in the regulatory framework governing pesticides as well as a high-level expert network of over 70 top experts, including approx 20 university science departments, toxicologists, doctors, lawyers, scientists, agronomists, manufacturers, farmers, agricultural standards and certifiers, farmworker organisations, unions, researchers and NGO's. UnPoisons members participate in national, SADC, regional, and international committees contributing to pesticide research, policy, and standards at every level.

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